



CHAPTER xxxix.

An Act to authorise the Exmouth Urban District Council A.D. 1910.
to construct waterworks and for other purposes.

[26th July 1910.]

WHEREAS the urban district of Exmouth in the county of Devon (in this Act called "the district") is under the government of the Exmouth Urban District Council (in this Act called "the Council"):

And whereas by the Exmouth Urban District Water Act 1900 (in this Act called "the Act of 1900") the Council were authorised to purchase and acquire the undertaking of the Exmouth and District Waterworks Company and the Council are now supplying water within the district and the parish of East Budleigh:

And whereas the supply of water from the existing waterworks of the Council is inadequate to meet the present and growing demands of the inhabitants within the water limits of the Council and it is expedient that the Council should be empowered to make and maintain the additional works by this Act authorised:

And whereas plans and sections showing the lines situations and levels of the works by this Act authorised and also a book of reference to such plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of the lands which may be taken or used for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Devon and are in this Act respectively referred to as "the deposited plans sections and book of reference":

A.D. 1910.

— And whereas estimates have been prepared by the Council showing the total amount which will or may be required for the purchase of land for and the execution of the works by this Act authorised and such estimates amount to the sum of eighteen thousand pounds:

And whereas the several works included in such estimates respectively are permanent works within the meaning of the Public Health Act 1875 and it is expedient that the cost thereof should be spread over a term of years:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

And whereas an absolute majority of the whole number of the Council at a meeting held on the eighth day of December one thousand nine hundred and nine after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Exmouth Chronicle* a local newspaper published and circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate:

And whereas the said resolution was published twice in the *Exmouth Chronicle* a newspaper published and circulating in the district and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the sixth day of January one thousand nine hundred and ten being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

and Commons in this present Parliament assembled and by the A.D. 1910.
authority of the same as follows (that is to say):—

1. This Act may be cited as the Exmouth Urban District Short title.
Water Act 1910.

2. The following Acts (so far as the same are applicable Incorporation
for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (namely):—
tion of Acts.

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of the
“ owner or reputed owner of any such house or of
“ the agent of such owner ” in section 44 of the
Waterworks Clauses Act 1847; and

(B) Sections 75 to 82 of the Waterworks Clauses
Act 1847 with respect to the amount of profit to be
received by the undertakers when the waterworks are
carried on for their benefit and section 83 relating
to accounts:

(2) The Lands Clauses Acts except section 127 of the Lands
Clauses Consolidation Act 1845.

3. In this Act the several words and expressions to which Interpretation.
meanings are assigned by the Acts wholly or partially incorporated
with this Act have the same meanings unless there is some-
thing in the subject or context repugnant to such construction
Provided that in the Acts wholly or partially incorporated with
this Act for the purposes of this Act—

The expressions “the undertakers” and “the company”
mean the Council:

And in this Act unless the context otherwise requires—

“The district fund” and “the general district rate” mean
respectively the district fund and district rate of the
district.

4. Subject to the provisions of this Act the Council may Power to
in the county of Devon and in the lines and situation and upon make works.
the lands delineated on the deposited plans and described in the
deposited book of reference make and maintain the following

A.D. 1910. works shown on the deposited plans and sections (that is to say) :—

Work No. 1.—A well and pumping station situated in the field or inclosure numbered 471 on the $\frac{1}{2500}$ Ordnance map for the county of Devon (2nd edition 1905) sheet XCIV.-1 in the parish of Colaton Raleigh:

Work No. 2.—An aqueduct conduit or one or more line or lines of pipes commencing at or in the well and pumping station (Work No. 1) before described and terminating in the river Otter numbered 171 on the aforesaid Ordnance map at a point 477 yards or thereabouts (measured along the centre of the course of the said river) south of the footbridge crossing the said river at the "Ford" on the road named "Mill Lane" on the $\frac{1}{2500}$ Ordnance map (2nd edition 1905) sheet LXXXII.-13 which aqueduct conduit or one or more line or lines of pipes will be situated in the parish of Colaton Raleigh:

Work No. 3.—An aqueduct conduit or one or more line or lines of pipes commencing in the parish of Colaton Raleigh at or in the well and pumping station (Work No. 1) before described and terminating in the parish of East Budleigh in the south-eastern corner of the Squabmoor Reservoir numbered 66 on the $\frac{1}{2500}$ Ordnance map for the county of Devon (2nd edition 1905) sheet XCIII.-11 which aqueduct conduit or one or more line or lines of pipes will be situated in the parishes of Colaton Raleigh Bickton and East Budleigh.

Power to
take lands
and waters.

5. Subject to the provisions of this Act the Council may enter upon take and use such of the lands delineated and described in the deposited plans and book of reference as may be required for the purposes of this Act and they may for the purposes of this Act and of their water undertaking take collect impound use and appropriate all such springs streams and waters as can be taken or collected by the waterworks by this Act authorised.

Power to
make subsi-
diary works.

6. In addition to the works by this Act expressly authorised the Council may upon the said lands make and maintain all such cuts channels tunnels adits pipes conduits culverts drains

sluices bye-washes shafts wells headings bores water towers over-
flows waste water channels gauges filter beds tanks basins
banks walls bridges embankments piers approaches telegraphs
telephones and other means of electric communication engines
machinery and appliances as may be necessary or convenient
in connexion with or subsidiary to the before-mentioned works
or any of them but nothing in this section shall exonerate the
Council from any action indictment or other proceeding for
nuisance in the event of any nuisance being caused or permitted
by them Provided that the telegraphs telephones and other
means of electric communication constructed under the powers
of this Act shall not be used for the purpose of transmitting
telegrams which are within the exclusive privilege conferred
upon the Postmaster-General by the Telegraph Act 1869. A.D. 1910.

7. In the construction of the works authorised by this Act the Council may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding four feet upwards and to any extent downwards Provided that except for the purposes of crossing over a stream canal or bridge no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections. Power to deviate.

8. The Council may (with the consent of the road authority where the Council are not the road authority) during the execution and for the purposes of any work authorised by this Act stop up any street and prevent all persons other than those bonâ fide proceeding to or returning from any house in the street from passing along and using the same for any reasonable time and the Council shall provide reasonable access for all persons so bonâ fide proceeding to or returning from any such house. Temporary stoppage of streets.

9.—(1) The Council may in lieu of acquiring any land for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of Power to acquire easements only.

A.D. 1910. the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Council have acquired easements only under the provisions of this section the Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided that except as to land forming part of a street nothing in this section contained shall authorise the Council to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Council to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Limiting
quantity of
commonable
land to be
acquired.

10. Notwithstanding anything in this Act contained the Council shall not acquire under the authority of this Act any greater quantity of the common or commonable land known as East Budleigh Common in the parish of East Budleigh than two roods and twenty-five perches and where the works authorised by this Act are intended to be laid beneath the surface of the said common the Council shall be restricted to such easement only in and over the common as they may require for the purpose of constructing and maintaining any such work and the Council shall restore the surface of the said common so soon as the works shall have been constructed.

Period for
compulsory
purchase of
lands.

11. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for
completion
of water-
works.

12. If the works authorised by this Act are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof respectively and otherwise in relation thereto shall cease except as to so much thereof respectively as shall be then completed Provided that the Council may extend enlarge alter reconstruct renew or remove any of their works and plant

and in the case of the conduits authorised by this Act lay down additional lines of pipes as and when occasion may require. A.D. 1910.

13. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Devon for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for such county and a duplicate thereof shall also be deposited with the clerks of the councils of the districts or parishes in which the lands affected are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerks of councils respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

Correction
of errors &c.
in deposited
plans and
book of re-
ference.

14. For the protection of the Right Honourable Charles John Robert Hepburn-Stuart-Forbes-Trefusis Baron Clinton his heirs and successors in estate of the property known as the Rolle Estate (all of whom are in this section included in the expression "the owner") the following provisions shall unless otherwise agreed in writing between the owner and the Council have effect (that is to say):—

For protec-
tion of Rolle
Estate.

- (1) The owner in consideration of the provisions herein-after in this section contained shall grant and convey to the Council in fee simple free of all charge or payment and free of incumbrances except tithe a piece of land forming part of the inclosure numbered 1 in the parish of Colaton Raleigh on the deposited plans whereon the well and pumping station (Work No. 1) and any buildings in connexion therewith and part of the line or lines of pipes (Work No. 3) by this Act authorised are or are intended to be constructed the position of which piece of land is for the purpose of

A.D. 1910.

identification only approximately shown and coloured pink upon the plan of which four copies have been signed by the Right Honourable the Earl of Onslow the Chairman of the Committee of the House of Lords to whom the Bill for this Act was during its passage through Parliament referred (of which one copy has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords and one copy has been retained by the Council and one copy has been retained by the owner):

(2) Except as in the preceding subsection mentioned the Council shall not under the provisions of this Act except by agreement purchase or take any lands belonging to the owner for the purposes of any line or lines of pipes by this Act authorised but the Council may acquire and the owner shall grant to the Council in perpetuity such easements or rights in and upon the lands of the owner as may be necessary for the purpose of constructing renewing repairing cleansing emptying inspecting and affording access to any such line or lines of pipes and the works incidental thereto and the Council shall pay to the owner as consideration for such easements or rights the sum of one pound per annum:

(3) The Council shall to the reasonable satisfaction of the owner and with all possible despatch restore and make good the surface of the land of the owner in or under which any line or lines of pipes may be constructed or laid and shall compensate the occupier or occupiers in respect of all surface damage consequent on or incidental to such work:

(4)—(A) Before commencing to take water from the said well and pumping station by this Act authorised the Council shall at their own expense and to the reasonable satisfaction of the engineer of the Rolle Estate extend the well at Dotton Farm in the parish of Colaton Raleigh by borehole or otherwise to produce a yield in any one day of twenty-four hours at the rate of not less than three hundred and sixty gallons an hour for six consecutive hours and shall provide pumping machinery worked by mechanical power

capable of raising water at the before-mentioned rate into a cistern with a capacity of one thousand five hundred gallons to be provided by the Council at the said farm such cistern to be fixed at such an elevation that the top level shall be twenty-five feet above the ground level and if in any year in which the said well and pumping station by this Act authorised is used by the Council for the supply of water the works then already executed at the Dotton Farm well prove insufficient by reason of the further lowering of the water to enable the owner or his tenant to obtain a supply of water at the rate aforesaid the Council shall forthwith at their own expense execute such further works as may be necessary to enable the owner or his tenant to obtain such supply from the said farm well or if the Council so determine from any other equally convenient source Provided that the Council shall not be responsible for the working maintenance or renewal of any works constructed by them under the foregoing provisions of this subsection: A.D. 1910.

- (B) If at any time after the date when the Council shall first commence to take and use water from the well and pumping station by this Act authorised any deficiency in the quantity of water at present used from any water supply well or watering place existing at the passing of this Act and situate in or upon any lands of the owner other than Dotton Farm aforesaid within a radius of one mile and a half from the said well or pumping station shall be caused by the exercise by the Council of the powers conferred upon them by this Act the Council shall at the written request of the owner and free of all cost make good such deficiency so long as the same shall continue:
- (c) For the purpose of enabling the Council to carry out any works or to make good any deficiency under the provisions of paragraphs (A) and (B) of this subsection the owner and his lessees and tenants shall grant to the Council free of cost such easements in and over the lands of the owner as may reasonably be required for such purpose:
- (D) The liability of the Council to carry out any works and to make good any deficiency in the supply of

A.D. 1910.

water in pursuance of the provisions of this subsection shall be deemed to be in full satisfaction of any damage or loss which the owner his lessees or tenants or his or their representatives may incur or suffer in respect of Dotton Farm or of any other houses or premises within the said radius in consequence of the taking and user by the Council of water from the said well and pumping station and of any such deficiency as aforesaid in the supply of water:

- (5) At all reasonable times after the passing of this Act the owner his lessees and tenants or his or their representatives shall afford to the officers or servants of the Council access to any water supply well or other watering place within the radius aforesaid for the purpose of inspecting and testing the same and of ascertaining the level of the water therein and other particulars thereof and for the purpose of making good any deficiency as aforesaid under the provisions of the last preceding subsection the Council if they think fit may deepen any affected well or make such borings therein or headings therefrom as will make good such deficiency the owner and his lessees and tenants giving the Council access and every facility for carrying out such deepenings borings or headings and the Council making compensation for any injury or damage caused to the owner or his lessees or tenants by the exercise by the Council of the powers conferred upon them by this subsection the amount of such compensation to be determined in case of difference by arbitration in the manner in this section hereinafter provided:
- (6) The Council shall if and when requested in writing by the owner and upon payment by the owner of such sum or sums as the Council may from time to time be entitled to charge for a similar supply of water within their limits of supply allow the owner to take a supply of water at any point or points on the mains of the Council beyond their limits of supply at such pressure as may exist in the mains at the point or points of abstraction for the use of any other lands tenements or hereditaments of the owner situate beyond the limits of supply of the Council and shall

give to the owner every reasonable access and facility to enable the necessary connexions to be made at the expense of the owner and subject to the reasonable approval of the Council Provided always that— A.D. 1910.

(A) If such supply be taken from the line or lines of pipes (Work No. 3) by this Act authorised the Council shall not be bound to pump more often than they may require to do for their own purposes ;

(B) Any such supply shall be measured by a meter or meters to be fixed and maintained by the Council at the point or points of abstraction ;

(C) The cost of providing fixing and maintaining the meters connexions pipes or other works necessary for any such supplies shall be paid by the owner ; and

(D) No such supply shall be given within the limits of any company authority or person supplying water under parliamentary authority without the consent of such company authority or person nor if and so long as such supply would interfere with the supply of water within the limits of supply of the Council :

(7) In the event of any dispute question or difference arising between the Council and the owner under the provisions of this section the same shall be referred to the arbitration of an engineer or other fit person to be appointed unless otherwise agreed by the Local Government Board and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

15. For the purpose of sinking any well shaft or bore or constructing enlarging extending repairing cleansing or examining any well shaft bore adit aqueduct conduit or other work authorised by this Act the Council may cause the water in any such well shaft bore adit aqueduct conduit or other work to be temporarily diverted into any available stream or watercourse.

Temporary discharge of water into streams.

In the exercise of the power conferred by this section the Council shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power

A.D. 1910. the amount of such compensation to be settled in the case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

Persons
under dis-
ability may
grant ease-
ments &c.

16. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Limiting
powers of
Council to
abstract
water.

17. The proviso to section 20 of the Act of 1900 is hereby repealed and from and after the passing of this Act the Council shall not sink any well upon or construct any works for taking or intercepting water from any lands acquired by them unless the well and works and the lands upon which the same are to be constructed are specified in an Act of Parliament.

New works
to be part of
undertaking.

18. The works by this Act authorised to be constructed shall for all purposes whatsoever (inclusive of water rates rents and charges) form part of the water undertaking of the Council.

Power to
borrow.

19.—(1) The Council may independently of any other borrowing power borrow at interest any sum or sums of money for the purposes and of the amount not exceeding the amounts herein-after mentioned (that is to say):—

(A) For the purchase of the lands and easements and for the construction of the works which the Council are by this Act authorised to acquire and construct the sum of eighteen thousand pounds;

(B) For paying the costs charges and expenses of and in relation to this Act as herein-after provided the sum requisite for that purpose;

and with the consent of the Local Government Board such further money as may be necessary for any of the purposes of this Act or otherwise in relation to the water undertaking of the Council.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the

Council may mortgage or charge the revenue of their water undertaking and if they think fit as a collateral security the district fund and general district rate. A.D. 1910.

20. In calculating the sums which the Council may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Council as to borrowing and re-borrowing under this Act shall not be restricted by any of the provisions of the Public Health Acts. Borrowing powers under other Acts not to be limited.

21. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act and for the purposes of the incorporated provisions of the Act of 1900 referred to as "the prescribed period") following (that is to say) :— Period for payment off of money borrowed.

As to moneys borrowed for the purpose (A) mentioned in the section of this Act of which the marginal note is "Power to borrow" within forty years from the date or dates of borrowing;

As to moneys borrowed for the purpose (B) mentioned in the said section within five years from the passing of this Act; and

As to moneys borrowed with the sanction of the Local Government Board within such period as that Board may sanction.

22. The provisions contained in the sections of the Act of 1900 the numbers and marginal notes of which are set forth in this section are so far as applicable hereby incorporated with this Act and this Act shall be read and construed as if those provisions had been expressly re-enacted (that is to say) :— Incorporating certain provisions of Act of 1900.

Section 48 (Mode of raising money);

Section 49 (Provisions of Public Health Act as to mortgages to apply);

Section 51 (Mode of payment off of money borrowed);

Section 52 (Sinking fund);

Section 53 (Protection of lender from inquiry);

Section 54 (Council not to regard trusts);

Section 55 (Appointment of a receiver);

Section 57 (Return respecting sinking fund to Local Government Board);

Section 59 (Application of money borrowed);

Section 64 (Inquiries by Local Government Board).

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Power to
re-borrow.

23.—(1) The Council shall have power—

- (A) To borrow for the purpose of paying off any moneys previously borrowed under this Act or the Act of 1900 which are intended to be forthwith repaid; or
- (B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Act or the Act of 1900 and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of the loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) By instalments or annual payments; or
- (B) By means of a sinking fund; or
- (C) Out of moneys derived from the sale of land; or
- (D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Authentica-
tion and ser-
vice of
notices &c.

24.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or any local Act Provisional Order or byelaw for the time being in force within

the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business. A.D. 1910.

25. All offences against this Act or the Act of 1900 and all penalties forfeitures costs and expenses imposed or recoverable under these Acts or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

26. The following sections of the Act of 1900 are hereby repealed without prejudice to anything done or suffered thereunder (that is to say):— Repeal of certain provisions of Act of 1900.

Section 56 (Power to re-borrow);

Section 65 (Authentication and service of notices);

Section 66 (Recovery of penalties).

27. Any expenses of the execution by the Council of this Act with respect to which no other provision is made may be defrayed by the Council out of the district fund or general district rate. Expenses of execution of Act.

28. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or the House of Commons shall be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed under this Act. Costs of Act.

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